

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ALEXANDER RILEY,

Plaintiff(s),

-vs-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE RONA SHIELD # 15085,
POLICE OFFICER PENELOPE SANCHEZ VARGAS SHIELD
20191, NEW YORK CITY POLICE OFFICERS JOHN AND
JANE DOE #1-10(intended as police officers
whose names and identifying information are unknown)

Defendant(s).
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Index No.:

Date Purchased: 7-
15-24

SUMMONS

Plaintiff designates
New York County as
the place of trial

The basis of venue is
location where
claims arose:

Near Washington
Square Park
NY, NY

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Mineola, New York
July 15, 2024

Yours, etc.,

JOUDEH & KULLER, LLP



BY: BRETT L. KULLER, ESQ.

Attorneys for Plaintiff

1539 Franklin Avenue, Suite 101
Mineola, New York 11501
(516) 540-2000

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

DETECTIVE RONA, SHIELD # 15085
100 Church Street
New York, NY 10007

DETECTIVE RONA, SHIELD # 15085
One Police Plaza
New York, NY 10038

POLICE OFFICER PENELOPE SANCHEZ VARGAS, SHIELD # 20191
100 Church Street
New York, NY 10007

POLICE OFFICER PENELOPE SANCHEZ VARGAS, SHIELD # 20191
One Police Plaza
New York, NY 10038

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JANE DOE #1-10(intended as police officers
whose names and identifying information are unknown)

Verified Complaint

Defendant(s).

-----X
Plaintiff, complaining of Defendants, by Plaintiff's attorneys, Joudeh & Kuller, LLP

respectfully shows to this Court, and alleges upon information and belief, the following:

1. That at all times hereinafter mentioned, Plaintiff Alexander Riley, is a resident of Philadelphia, Pennsylvania.
2. That at all times hereinafter mentioned, POLICE OFFICER PENELOPE SANCHEZ VARGAS, SHIELD # 20191, was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, DETECTIVE RONA, SHIELD # 15085, was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, New York City Police Officers John and Jane Doe ("DOE") #1-10 collectively, are officers involved in the subject actionable conduct, were employed by the City of New York and/or New York City Police Department and will be substituted into this action in place and stead of the Doe Defendants once their identifies are determined in discovery.

5. That at all times hereinafter mentioned, the DOE defendants were police officers acting within their scope of employment and under the color of duty of The City of New York and the New York City Police Department.

6. That at all times hereinafter mentioned, Defendant The City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 100 Church Street, County of New York, City and State of New York.

7. That at all times hereinafter mentioned, Defendant New York City Police Department, was and is an agency created and maintained by the above municipal government.

8. On or about July 6, 2023, the notice required by Municipal Law 50-E was served on the Defendants. Said notice set forth the facts underlying Plaintiff's claim against the Defendants.

9. On or about February 23, 2024, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth facts underlying Plaintiff's claims against Defendants. To date, no compensation has been offered by Defendants in response to this claim, and more than thirty (30) days have elapsed.

10. That on or about April 20, 2023, Plaintiff was near Washington Square Park, New York, New York.

11. That on or about April 20, 2023, near Washington Square Park, New York, New York, Plaintiff was caused to sustain injuries when he was assaulted, battered, attacked, beaten, pushed, shoved, tackled, knocked down, wrongfully arrested, wrongfully imprisoned, falsely arrested, falsely imprisoned, illegally searched and seized, and injured by police officers of the New York City Police Department. Upon information and belief, the police officers involved were

Detective Rona, Shield # 15085, and Police Officer Penelope Sanchez Vargas, Shield # 20191. There may have been other police officers involved as well. Claimant Alexander Riley was wrongfully imprisoned after being wrongfully arrested and detained.

12. That at no time was Plaintiff engaged in any criminal or unlawful activity.

13. That while Plaintiff was at the Precinct, and thereafter, the Plaintiff was searched, assaulted, battered, harassed and abused.

14. That Plaintiff was forced to attend Court in relation to the charges for which he was arrested for on several separate occasions.

15. The Court dismissed all charges for which Plaintiff was arrested on April 20, 2023.

16. Plaintiff seeks punitive damages and attorneys' fees with respect to the claims asserted herein where said damages are recoverable.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF Alexander Riley**

17. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "16" above with the same force and effect as though each and every allegation were set forth at length herein.

18. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

19. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

20. Plaintiff was falsely arrested and falsely imprisoned.

21. The individually named defendants were acting in the scope of their employment

under color of law, and intended to confine plaintiff and, without consent, without legal authority, and without probable cause, did seize and confine plaintiff. The confinement was not otherwise privileged.

22. Plaintiff was conscious of the confinement and did not consent to the confinement.

23. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for the Plaintiff's own physical safety when the Plaintiff sees and encounters members of the New York City Police Department from the day of the arrest and onward.

24. That as a result of Defendants' actions, Plaintiff has been unable to sleep.

25. Plaintiff suffered severe emotional distress.

26. Defendants breached duties owed to plaintiff which exposes plaintiff to an unreasonable risk of bodily and psychological injury.

27. Plaintiff sustained bodily and psychological injury.

28. That as a result of Defendants actions, Plaintiff may have been unable to maintain employment.

29. That as a result of the Defendants' actions, Plaintiff seeks damages in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts, along with punitive damages.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF Alexander Riley**

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "29" above with the same force and effect as though each and every allegation were set forth at length herein.

31. The intentional verbal abuse, assault, battery, false arrest, and false imprisonment by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth, and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

32. That the aforementioned acts, omissions and conduct of the defendants, set forth above, resulted in the plaintiff suffering physical injury, impairment of health, severe emotional and mental distress, impairment of reputation and character, loss of income, deprivations and violations of her Fourth, Fifth and Fourteenth Amendment rights as well as rights secured and guaranteed by 42 U.S.C. §1983 and the laws of the United States.

33. That as a result of the defendants' concerted and unlawful use of excessive force, interrogation tactics, harassment, seizing of personal properties, imprisonment, and assault and battery of plaintiff, the plaintiff was deprived of his liberty without due process of law in violation of his rights under the Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of her statutory rights under 42 U.S.C. §1983; and the plaintiff was further deprived of his right to due process under the Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of her statutory rights under 42 U.S.C. §1983 by the defendant's use of excessive physical force.

34. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless unlawfully arrest Plaintiff with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for Plaintiff's constitutional rights. Thus, Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF Alexander Riley**

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "34" above with the same force and effect as though each and every allegation were set forth at length herein.

36. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec 1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus, Plaintiff is entitled to both compensatory and punitive damages, as well as attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF Alexander Riley**

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "36" above with the same force and effect as though each and every allegation were set forth at length herein.

38. That at all times pertinent hereto, the individually named defendants were acting within the scope of their employment as officers of the New York City Police Department and the City of New York.

39. Plaintiff was verbally abused, assaulted, battered, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous

and unjustified and caused Plaintiff suffer physical and severe emotional distress for which the Defendants are individually liable.

40. The verbal abuse, false arrest, and false imprisonment of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and with deliberate disregard for human life and the rights of Plaintiff.

41. Plaintiff is thus entitled to compensatory and exemplary damages.

42. Defendants intentionally placed plaintiff in apprehension of imminent and harmful and offensive contact.

43. That Defendants did persist in their claims in an effort to continue the imprisonment of the Plaintiff.

44. That, upon information and belief, the respective Defendants, their agents, servants and/or employees may have engaged in presenting and/or providing false information and/or testimony for the purpose of prosecuting the underlying action against Plaintiff, which action was ultimately dismissed.

45. That Defendants are each liable for compensatory damages under the doctrine of respondeat superior for the torts that the individually named defendants committed within the scope of their employment.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF Alexander Riley**

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "45" above with the same force and effect as though each and every allegation were set forth at length herein.

47. Defendants had a duty to exercise reasonable care in their interactions with plaintiff.

48. That the defendants were negligent, reckless and failed to use reasonable care during the aforesaid incident.

49. Defendants were negligent by, *inter alia*, falsely imprisoning and confining plaintiff: (1) without reasonable suspicion; (2) without probable cause; (3) without a warrant; and (4) failing to review readily available evidence that would have immediately exonerated plaintiff.

50. The City of New York and the New York City Police Department's failure to provide adequate training and supervision to the individually named defendants constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory and punitive damages.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF Alexander Riley**

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "50" above with the same force and effect as though each and every allegation were set forth at length herein.

52. The Defendants, The City of New York and New York City Police Department, were negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, the Defendants, The City of New York and New York City Police Department, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendants, The City of New York and The New York City Police Department, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

53. The Defendants, The City of New York and New York City Police Department, were negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, the Defendants The City of New York and New York City Police Department, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed, and that due to their lack of training, these officers should have had adequate supervision, and training, so that they would not arrest innocent individuals nor use excessive force during the arrest process.

54. That by reason of the foregoing, Plaintiff Alexander Riley, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continued to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, Plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

55. That by reason of the aforesaid unlawful arrest, the Plaintiff, was deprived of Plaintiff's liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in Plaintiff's character and reputation, was prevented from attending Plaintiff's usual business and avocation, was injured in Plaintiff's reputation in the community and the said plaintiff has been otherwise damaged.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF Alexander Riley

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "55" above with the same force and effect as though each and every allegation were set forth at length herein.

57. Upon information and belief, the City of New York and the New York City Police Department maintained a system of police conduct that was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

58. Upon information and belief, The City of New York and the New York City Police Department maintained a system of review police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

59. The actions of defendants resulted in the plaintiff being deprived of the following rights protected under the Fourth Amendment of the United States Constitution: (1) freedom of assault to his person; (2) freedom of battery to his person; (3) freedom of space to his person; (4) freedom of illegal search and seizure; (5) freedom from false arrest; (6) freedom from false and unlawful imprisonment; (7) freedom from harassment; (8) freedom from false and unlawful confinement; (9) freedom from malicious prosecution; (10) freedom from loss of his liberty; (11) freedom from being held and unlawfully interrogated; (12) freedom from assault and battery; and (13) freedom from unlawful seizure of personal property.

60. The defendants subjected plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights or with deliberate indifference to those rights protected under the Fourth Amendments of the United States Constitution.

61. The defendants deprived Plaintiff of his rights under the Fifth Amendment by depriving Plaintiff of life, liberty and property without due process.

62. These deprivations could have been prevented by implementation and use of procedures that afforded plaintiff due process.

63. That by reason of the foregoing, Plaintiff has suffered damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

WHEREFORE, Plaintiff, demands judgment against the respective Defendants in the First Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action, along with compensatory damages, punitive damages and attorneys' fees; Plaintiff, demands judgment against the respective Defendants in the Second Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action, along with compensatory damages, punitive damages and attorneys' fees; Plaintiff demands judgment against the respective Defendants in the Third Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action, along with compensatory damages, punitive damages and attorneys' fees; Plaintiff, demands judgment against the respective Defendants in the Fourth Cause of Action in an amount which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action, along with compensatory damages, punitive damages and attorneys' fees; Plaintiff, demands judgment against the respective Defendants in the Fifth Cause of Action in an amount

which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action, along with compensatory damages, punitive damages and attorneys' fees; Plaintiff, demands judgment against the respective Defendants in the Sixth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action, together costs, disbursements and punitive damages in an amount to be determined at the time of the trial in the within action including any statutory attorney's fees and disbursements pursuant to 42 U.S.C. § 1983 and for such other and further relief as to this Court may deem just and proper.

Dated: Mineola, New York
July 15, 2024

Yours, etc.

JOUDEH & KULLER, LLP



BY: BRETT KULLER, ESQ.

Attorneys for Plaintiff

1539 Franklin Avenue, Suite 101
Mineola, New York 11501
(516) 540-2000

VERIFICATION

STATE OF NEW YORK, COUNTY OF NASSAU

ss:

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for the Plaintiff in the within action; I have read the foregoing VERIFIED SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client is not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: Mineola, New York
July 15, 2024



BRETT L. KULLER

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ALEXANDER RILEY,

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-against-

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POLICE OFFICER PENELOPE SANCHEZ VARGAS
SHIELD # 20191, NEW YORK CITY POLICE OFFICERS
JOHN AND JANE DOE #1-10(intended as police officers
whose names and identifying information are unknown)

Defendants.

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SUMMONS AND VERIFIED COMPLAINT

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JOUDEH & KULLER, LLP.

Attorneys for Plaintiff

Office and Post Office Address, Telephone

1539 Franklin Avenue, Suite 101

Mineola, New York 11501

(516) 540-2000

File No.: 1275.RJ

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